VOL 033 PAGE 2668

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PROTECTIVE COVENANTS AND RESTRICTIONS

PART A. PREAMBLE

IN CONSIDERATION OF THE PREMISES AND MUTUAL COVENANTS HEREIN AFTER SET FORTH: THE UNDERSIGNED HEREBY CERTIFY AND DECLARE THAT THE PROTECTIVE RESTRICTIONS AND COVENANTS HEREINAFTER DESCRIBED SHALL, AS HEREINAFTER OTHERWISE PROVIDED; INURE TO THE BENEFIT OF AND BE BINDING UPON EACH AND EVERY LOT NOW OWNED BY Springfield Dev. Inc. BEING THE PARTIES HERETO IN PLAT OF Springfield WHICH PLAT WAS RECORDED THE 26th Day of Nov. 1980 UNDER PIERCE COUNTY, AUDITOR'S FEE NO. 8011260320 RECORDS OF PIERCE COUNTY WASHINGTON, AND SHALL APPLY TO AND BE BINDING UPON THE RESPECTIVE OWNERS OF SUCH LOTS AND UPON THEIR SUCCESSORS OF INTEREST; SUCH RESERVATION AND RESTRICTION BEING AS FOLLOWS:

PART B. AREA OF APPLICATION

B-1 FULLY PROTECTED RESIDENTIAL AREA.

The residential area covenants in Part C in their entirety shall apply to all of lots 2 thru 378 inclusive in the plat of Springfield, located in South Hill in the vicinity of Puyallup, Pierce County, Wash.

PART C. RESIDENTIAL AREA COVENANTS

C-1 LAND USE AND BUILDING TYPE.

No lot shall be used except for residential purposes. No building shall be erected, altered, placed, or permitted to remain on any lot other than one detached single-family dwelling not to exceed two stories in height and a private garage for not more than two cars.

C-2 ARCHITECTURAL CONTROL

No building shall be erected, placed, or altered on any lot until the construction plans and specifications and plan showing the location of the structure have been approved by the Architectural Control Committee as to quality of workmanship and materials, harmony of external design with existing structures, and as to location with respect to topography and finish grade elevation.

No fence, wall or hedge shall be erected, placed or altered on any lot nearer to any street than the building setback line, except that nothing shall prevent the erection of a necessary retaining wall, the top of which does not extend more than two feet above the finished grade at the back of said wall.

C-3 DWELLING SIZE

The ground floor area of the main structure, exclusive of one-story open porches and garages, shall be not less than 875 square feet for a one-story dwelling, nor less than 750 square feet for a dwelling of more than one story.

C-4 BUILDING LOCATION

(a) No building shall be located on any lot nearer to the front lot line or nearer to the side street line than the minimum building setback shown on the recorded plat. In any event, no building shall be located on any lot nearer than 25 feet to the front lot line, or nearer than 25 feet to any side street line.

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(b) No building shall be located nearer than 8 feet to an interior lot line. No dwelling shall be located on any interior lot nearer than 25 feet to the rear lot line.

(c) For the purposes of this covenant, eaves, steps, and open porches shall not be considered as a part of a building, provided however, that this shall not be construed to permit any portion of a building, on a lot to encroach upon another lot.

C-5 LOT AREA AND WIDTH

No dwelling shall be erected or placed on any lot having a width of less than 40 feet at the minimum building setback line nor shall any dwelling be erected or placed on any lot having an area of less than 10,000 square feet.

C-6 EASEMENTS

Easements for utilities and drainage are reserved over a 24 foot wide strip along each side of interior of lot lines and over the rear five feet of each lot. Within these easements, no structure, planting or other material shall be placed or permitted to remain which may damage or interfere with the insulation and maintenance of utilities, or which may change the direction of flow of drainage channels in the easements, or which may obstruct or retard the flow of water through drainage channels in the easements. The easement area of each lot and all improvements in it shall be maintained continuously by the owner of the lot, except for those improvements for which a public authority or utility company is responsible.

C-7 NUISANCES

No noxious or offensive activity shall be carried on upon any lot, nor shall anything be done thereon which may be or may become an annoyance or nuisance to the neighborhood.

C-8 TEMPORARY STRUCTURES

No structure of a temporary character, trailer, basement, tent, shack, garage, barn, or other outbuilding shall be used on any lot at any time as a residence either temporarily or permanently.

C-9 SIGNS

No sign of any kind shall be displayed to the public view on any lot except one professional sign of not more than one square foot, one sign of not more than six square feet advertising the property for sale or rent, or signs used by a builder to advertise the property during the construction and sales period.

C-10 OIL AND MINING OPERATIONS

No oil drilling, oil development operations, oil refining, quarrying or mining operation of any kind shall be permitted upon or in any lot, nor shall oil wells, tanks, tunnels, mineral excavations or shafts be permitted upon or in any lot. No derrick or other structure designed for use in boring for oil or natural gas shall be erected, maintained or permitted upon any lot.

C-11 LIVESTOCK AND POULTRY

No animals, livestock, or poultry of any kind shall be raised, bred, or kept on any lot, except that dogs, cats or other household pets may be kept provided that they are not kept, bred, or maintained for any commercial purpose.

C-12 GARBAGE AND REFUSE DISPOSAL

No lot shall be used or maintained as a dumping ground for rubbish. Trash, garbage or other waste shall not be kept except in sanitary containers. All incinerators or other equipment for the storage or disposal of such material shall be kept in a clean and sanitary condition.

C-13 WATER SUPPLY

No individual water supply system shall be permitted on any lot,

C-14 SEWAGE DISPOSAL

No individual sewage disposal system shall be permitted on any lot unless such system is designed, located and constructed in accordance with the requirements, standards and recommendations of Pierce County Health Authorities. Approval of such system as installed shall be obtained from such authority.

C-15 SIGHT DISTANCE AT INTERSECTIONS

No fence, wall, hedge or shrub planting which obstructs sight lines at elevations between 2 and 6 feet above the roadways shall be placed or permitted to remain on any corner lot within the triangular area formed by the street property lines and a line connecting them at points 25 feet from the intersection of the street lines, or in the case of a rounded property corner from the intersection of the street property lines extended. The same sight line limitations shall apply on any lot within 10 feet from the intersection of a street property line with the edge of a driveway or alley pavement. No tree shall be permitted to remain within such distances of such intersections unless the foliage line is maintained at sufficient height to prevent obstruction of such sight lines.

C-16 SCREEN PLANTING EASEMENT

No clearing, grading or fencing shall be permitted in the screen planting easement.

PART D. ARCHITECTURAL CONTROL COMMITTEE

D-1 MEMBERSHIP

The Architectural Control Committee is composed of

N. Hoolsema, P.O. Box 1003, Puyallup, Wa. 98371

C. Hanson, 12811 148th St. E., Puyallup, Wa. 98371

T. McMahon, 508 189th St. Ct. E., Spanaway, Wa. 98387

A majority of the committee may designate a representative to act for it. In the event of death or resignation of any member of the committee, the remaining members shall have full authority to designate a successor. Neither the members of the committee, nor its designated representatives shall be entitled to any compensation for services performed pursuant to this covenant. At any time, the then record owners of a majority of the lots shall have the power through a fully recorded written instrument to change the membership of the committee or to withdraw from the committee or restore to it any of its powers and duties.

D-2 PROCEDURE

The committee's approval or disapproval as required in these covenants shall be in writing. In the event the committee, or its designated representative, fails to approve or disapprove within 30 days after plans and specifications have been submitted to it, or in any event, if no suit to enjoin the construction has been commenced prior to the completion thereof, approval will not be required and the related covenants shall be deemed to have been fully complied with.

PARE E. GENERAL PROVISIONS

E-1 TERM

These covenants are to run with the land and shall be binding on all parties and all persons claiming under them for a period of thirty years from the date these covenants are recorded, after which time said covenants shall be automatically extended for successive periods of 10 years unless an instrument signed by a majority of the then owners of the lots has been recorded, agreeing to change said covenants in whole or in part.

E-2 ENFORCEMENT
Enforcement shall be by proceedings at law or in equity against any person or persons violating or attempting to violate any covenants either to restrain violation or to recover damages.

E-3 SEVERABILITY
Invalidation of any one of these covenants by judgment or court order shall in no wise affect any of the other provisions which shall remain in full force and effect.

E-4 ALTERATIONS
The developer reserves the right to alter these covenants prior to commencement of construction of subdivision dwellings.

DATED THIS 17th Day of March 1981

(SEAL)

NICK HOOLSEMA (SEAL)

STATE OF WASHINGTON )
)
COUNTY OF PIERCE )

On this day personally appeared before me

to me known to be the individuals described in and who executed the within and foregoing instrument, and acknowledged that they signed the same as their free and voluntary act and deed, for the uses and purposes therein mentioned.

GIVEN under my hand and official seal this

Notary Public in and for the State of Washington, residing at